Roc.No.A10/ 354/2023 Dated: .2023

NOTES FOR APPROVAL OF LAND VALUE BY THE STATE LEVEL PRIVATE NEGOTIATION COMMITTEE AS DETERMINED BY THE DISTRICT LEVEL PRIVATE NEGOTIATION COMMITTEE IN RESPECT OF ACQUISITION OF LANDS FOR ESTABLISHMENT OF ALLIKULAM SCHEME , LAND IN ALLIKULAM VILLAGE IN THOOTHUKUDI TALUK OF THOOTHUKUDI DISTRICT:

Table – 1

District	Thoothukudi
Taluk	Thoothukudi
Village	Allikulam
Survey Numbers	1/1 & etc.
Administrative Sanction	G.O. No. 100, Industries (SIPCOT-LA) Dept., Dt.26.02.2021
Extent to be acquired as per G.O.	93.97.00 Hectares (232.11 acres)
Proposed for Exemption extent	0.01.00 Hectare (0.0247 acre)
Final area for acquisition	93.96.00 Hectares (232.08 acres)
Publication of Notice u/s 3(2)	18.12.2021, 21.08.2022 (Eratta)
Publication of Notice u/s 3(1)	03.11.2022, 08.12.2022, 22.12.2022, 03.01.2023 and 08.05.2023
DLPNC conducted on	23.08.2023
Purpose	Establishment of Allikulam Scheme, SIPCOT
Permissible Negotiation percentage as per G.O.100 (As acquired lands are falling in rural limit)	Upto 275%

1. Brief History of the case:

The Government in their order vide G.O. No. 100, Industries (SIPCOT-LA) Dept., Dt.26.02.2021, Administrative Sanctions were accorded for the acquisition of lands for the establishment of Allikulam Scheme by the SIPCOT in Allikulam Village, Thoothukudi Taluk and District for an extent of 93.47.00 hectare (230.87 acres) of patta lands and for alienation for the Government poromboke lands for an extent of 0.49.00 Hectare (1.21 acre).

Table – 2

Name of the Village	G.O. No. 100, Industries (SIPCOT-LA) Dept., Dt.26.02.2021		
	Patta land (in hect.)	Poromboke land (in hect.)	Total land (in hect.)
Allikulam	93.48.00	0.49.00	93.97.00

- ✓ The Notices u/s.3(2) of extent 93.47.00 hectare [excluding 0.01.0 Hectare of land in which a graves has been built up] and 3(1) notification to the extent of 69.69.00 Hectares (excluding Block No.1 to the extent of 12.39.50 Hectares in which 3(1) notification yet to be published for the reason that 0.45.3 Hectare of land which fall under UDR correction and Block No.5 to the extent of 11.38.50 Hectares in which 3(1) notification yet to be published for the reason that classification change is required for 0.81.0 Hectare) of the Tamil Nadu Acquisition of Land for Industrial Purposes Act. 1997 were published as per the procedures laid down under the provisions of the Tamil Nadu Acquisition of Land for Industrial Purposes Act, 1997.
- ✓ Some of the pattadars of the concerned lands objected for land acquisition. After considering the objections, all petitions are rejected
- ✓ During the field inspection of lands, it was proposed to exempt an extent of 0.01.00 hectare due to reason as given below:

Table – 3

Lands proposed to be exempted

Village	Extent (Acre)	Extent (Hectare)	Remarks
Allikulam	0.0247	0.01.00	Two Graves are located in survey No.6/4B an extent of 0.01.0 Hectare

The details of the lands to be acquired after deducting proposed exemption area in Allikulam Village and the Guide Line Value of the lands are as below :

Table – 4

S.No.	GLV (in Rs.)		GLV Classification	Total Extent	
	Hectare	Acre		Hectare	Acre
1	2	3	4	5	6
1	3,48,000	1,40,891	Dry Well Irrigation Type - I	4.57.50	11.30
2	4,97,000	2,01,215	Dry Manavari Type-I	88.89.50	219.57
			Total	**93.47.00**	**230.87**

2. **Determination of market value for the acquired Lands:**
   - ✓ In order to arrive the market value, the sales statistics that took place in 1.6km radius from the acquisition field for the period of three years prior to the date of publication for 3(2) notice have been collected from Pudukottai Sub-Registrar's Office.
   - ✓ As per the provisions of the RECTLARR Act, 2013 and the guidelines issued vide CLA office Circular No. M2/7304/2018, dated: 16.10.2020, the market values have been worked out as follows:

Table – 5

Sl.No.	Name of the Village	Group	Extent to be acquired (in Hec.)	Guideline Value Per Hec. (in Rs.)	As per Average sale Value Per Hec. (in Rs.)
1	Allikulam	A	4.57.50	3,48,000	4,17,281
2		B	88.89.50	4,97,000	4,98,120
		TOTAL	**93.47.00**		

Determination of compensation under Private Negotiation:

- ✓ Based on the above market values, DLPNC meeting was conducted by the officials with land owners on 23.08.2023. During the meeting, discussion has been made upto 275% of Market Value / Guideline Value (whichever is higher) by the DLPNC as per G.O.Ms No.411, Revenue and Disaster Management (LA-I(I)) Department, dated 06.08.2020 since the acquisition fields are located within 30 km from Urban limit. After that, additionally 25% incentive to be given for that calculated compensation.
- ✓ Apart from the above, it was decided during the DLPNC that in respect of trees and structures, those will be estimated by the concerned Departments without any depreciation along with 100% solatium. Apart from this, 25% incentive also to be given for that calculated compensation.
- ✓ During the DLPNC meeting, the market value of the lands and the possible compensation that is entitled as per the Act and as per Private Negotiation, statement of pattadars about the value of land were discussed. Many of them have consented to give the lands if higher compensation is paid.
- ✓ District Level Private Negotiation Committee decided to recommend common prices to all land owners in the Village irrespective of the Guideline Value.
- ✓ Out of the total acquisition extent of 93.47.00 Hectares (230.87 acres) of lands (ie.) 88.89.5 Hectares (219.57 acres) of lands (ie.) 95% of land has GLV of Rs. 4,97,000/- per hectare.
- ✓ The lands proposed for acquisition are similar in nature spread across the adjacent village.
- ✓ The compensation permissible for the extent of lands under two types of classification as per Act and as per Private Negotiation are given in the Annexures III and IV.
- ✓ The value of trees will be obtained from Forest, Agriculture, Horticulture and the value of Building and well, Bore well will be obtained from PWD Departments and 100% solatium is proposed to be given as per the guidelines in force.
- ✓ Hence, based on the above justification a flat rate of Rs.9,00,000/- may be applied to the lands with GLV's Rs.3,48,000/- and 4,97,000/- to the extent of 93.47.00 Hectare.

a) It was decided by the DLPNC to fix a flat rate at Rs.9 lakhs per acre inclusive of all components (inclusive of 275% negotiable value + 25% incentive) including Rehabilitation and Resettlement benefits under schedule – II RFCTLARR ACT 2013 in respect of certain categories of lands furnished in Annexure – V for which the final compensation amount shall be less than Rs.9 lakhs as per the provisions of G.O.Ms.No.411, Revenue & Disaster Management Department,, Dated 06.08.2020.

The following justifications were made by the District Collector, Thoothukudi to arrive such flat rate for the above lands.

- Considering the two variations in GLVs among the adjacent lands and anomalies in fixation of GLVs for the acquired lands located within the close proximity, it is necessary to determine a fair compensation amount for the acquired lands irrespective of GLVs.
- To avoid futuristic expenditure in the form of LAOP cases, it has been decided to determine a fair compensation amount based on the prevailing market value for the acquired lands and to complete the land acquisition through Private Negotiation in a smooth way.

b) Since, the decisions taken in the above reasons are beyond the powers of DLPNC, it was decided to get the approval of Government through SLPNC.

c) Further, the values of structures / trees identified in the acquired lands through will be estimated by the concerned Departments and the same shall be given to the land owners along with 100% solatium and 25% incentive as stipulated in G.O.Ms.No.411, Revenue & Disaster Management Department, Dated: 06.08.2020.

Accordingly, the final land compensation amount (excluding the compensation for Trees & Structures) shall be estimated as follows.

Table -6

COMPARATIVE STATEMENT OF COMPENSATION PAYABLE

(including Rehabilitation and Resettlement benefits under schedule – II, RECTLARR ACT 2013)

S. No.	Total Extent		GLV Classification	GLV (in Rs.)		Sales value (in Rs.)		Total compensation as per Act. (Rs.) in acre	Total compensation as per PN (Rs.) in acre	Total compensation as per flat rate (Rs.) in acre
	Hect.	Acre		Acre	Hec	Acre	Hec			
1	2	3	4	5	6	7	8	9	10	11
1	4.57.50	11.30	Dry Well Irrigation Type - I	140891	348000	168940	417281	5143478	6562260	10170000
2	88.89.50	219.57	Dry Manavari type-I	201215	497000	201668	498120	119304238	152213389	197613000
	93.47.00	**230.87**						**124447716**	**158775649**	**207783000**

4. **Recommendation of DLPNC:**

The DLPNC has recommended the above to SLPNC, to get the approval of Government for the following:

- ✓ In respect of certain categories of lands for which final land compensation is less than Rs.9 lakhs per acre: To fix a flat rate at Rs.9 lakhs per acre inclusive of all components (inclusive of negotiable value + 25% incentive) under the private negotiation mode including Rehabilitation and Resettlement benefits under schedule – II RFCTLARR ACT **2013** for an extent of 93.47.00 Hectares (230.87 acres) (including an extent of 23.78.0 Hectares for the reasons of pending classification change and UDR correction) as furnished in **Annexure – I** for which the final compensation amount (inclusive of negotiable value + 25% incentive) shall be less than Rs.9 lakhs as per the norms of the Act / Private negotiation.

- ✓ To permit the District Collector, Thoothukudi to estimate the values of structures / trees identified in the acquired lands through concerned Departments and the same may be given to the land owners along with 100% solatium and 25% incentive as stipulated in G.O.Ms.No.411, Revenue & Disaster Management Department, Dated: 06.08.2020.
- ✓ To permit the District Collector, Thoothukudi to proceed with the process of acquisition of lands through **Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement, Act 2013,** for the unconsented land owners.

23/8/23

DLPNC Member Secretary /
District Revenue Officer, Thoothukudi

25/7/25

DLPNC Chairman /
District Collector,
Thoothukudi

23/8/2023

DLPNC Member / District Registrar,
Registration Department,
Thoothukudi

23/8/2023

DLPNC Member /
Land Acquisition Officer and
Special District Revenue
Officer, SIPCOT, Thoothukudi

23.08.2023

DLPNC Member /
District Revenue Officer, SIPCOT,
Chennai